

requests for documents motion, instead of the pending motion, but the arguments made are written to apply to either type of discovery, and the issues are the same. Counsel's declaration is captioned for the pending Interrogatories motion. The Court views this as an inadvertent error in captioning.)

The dispute was the subject of an Informal Discovery Conference with the Court on July 10, 2025. The underlying case is a wage and hour putative class action. A prior case, however, *Shweiki v. Donor Network West*, No. MSC20-00073 settled wage and hour claims from January 10, 2016 through August 22, 2022. Mr. Swearington opted out of that settlement, thus his individual claim may proceed. He brings this putative action to address claims accruing after August 22, 2022. Initially, the claims included prior time periods, but counsel ultimately agreed that it covered only post-August 2022 claims. (Regardless of whether counsel is bound by the statement, it is a necessary concession in this case.) The glitch in this effort is that he stopped working for defendant on July 23, 2021, and therefore is not and has never been a member of the class he seeks to represent. Accordingly, he seeks classwide discovery in order to find another class representative.

Plaintiff is entitled to make an effort to find a new class representative. Plaintiff points to cases that have allowed such discovery, including *Best Buy Stores, L.P. v. Superior Court* (2006) 137 Cal.App.4th 772, 774. and *Cash Call v. Superior Court* (2008) 159 Cal.App.4th 273, 284.) In these cases, however, the named plaintiff at one time was a class member, but ceased to be one. Where the plaintiff never was a class member, it has been held that no precertification discovery is permitted. (*First American Title Ins. Co.*, (2007) 146 Cal.App.4th 1564, 1577. (Trial court opinions do not set precedent and will not be considered.) (*Bolanos v. Superior Court* (2008) 169 Cal.App.4th 744; *In re Molz* (2005) 127 Cal.App.4th 836, 845.) Plaintiff points out in reply, however, that the Shweiki settlement was not approved under August 27, 2024, over two years after the complaint in this action was filed. Thus, the pre- post-August 22 distinction did not become critical under August of 2024, rendering this case more like *Best Buy* and *Cash Call* than it is like *First American Title*.

The Court notes that in the interrogatories, the relevant time period is defined as February 21, 2018 through the time of response to the interrogatory. It is not limited to post-August 22, 2022 time period. To the extent these interrogatories relate to time period before August 22, 2022, they are not relevant to the subject to the subject matter of this action. As to the time period on or after August 22, 2022, the motion is granted. Defendant will provide full answers without objection no later than 14 days after service of notice of entry of this order

While the Court rules against defendant on the merits, its position was substantially justified. Accordingly, no sanctions will be awarded.

2. 9:00 AM CASE NUMBER: C23-00792
CASE NAME: JEFFREY R. KENNY AND LEKHINI JOSHI-KENNY, TRUSTEES VS. TIMOTHY BANCROFT
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: JEFFREY R. KENNY AND LEKHINI JOSHI-KENNY, TRUSTEES OF THE JEFFREY R. KENNY AND LEKHINI JOSHI-KENNY LIVING TRUST DATED JANUARY 9, 2021
TENTATIVE RULING:

Before the Court is a motion for judgment on the pleadings filed by cross-defendants Jeffrey R. Kenny and Lekhini Joshi-Kenny. For the reasons set forth, the motion is **granted in part and denied in part**. The motion is **granted** as to the first, second, and third causes of action, **with leave to amend**, and the motion is denied as to the fourth cause of action.

Background

This action arises out of a dispute between neighbors over disputed property at the border of their respective properties. Plaintiffs and cross-defendants Jeffrey Kenny and Lekhini Joshi-Kenny (the "Kennys" for convenience) reside at 1928 Saint Norbert Drive in Danville ("Kenny Property"), and defendants and cross-complainants Timonthy Bancroft and Andrea Bancroft (the "Bancrofts" for convenience) reside at 1927 Saint Norbert Drive ("Bancroft Property") which borders the Kenny Property. (First Am. Cross-Complaint ("FACC") ¶¶ 1, 2.) The FACC identifies the area at the border of the two properties subject to the Bancrofts' claims, and subject to the claims of the Kennys in their operative second amended complaint, as the "Disputed Area." (See FACC Introductory Paragraph, ¶¶ 5, 8.)

The Bancrofts allege that they bought the Bancroft Property in 2006. They allege that in the spring of 2007, they made an agreement with David Rebata, the then-owner of the Kenny Property, as to an agreed boundary between the two properties pursuant to which the "Bancrofts and their predecessors" constructed and maintained a "readily visible" irrigation system "extending and servicing up to where the prior owners of the Kennys' Property had installed and maintained" an irrigation system with sprinklers directed toward the Kenny Property. (FACC ¶¶ 5, 9, 10.) The Bancrofts allege there is cement landscaping, moss rocks, drip lines and plants, trees and grass in the Disputed Area "constructed, planted and installed by, and/or paid for and maintained and irrigated by" the Bancrofts for 14 years before the Kennys bought the Kenny Property. (FACC ¶ 5.) They allege the Bancrofts and the Rebatas never repudiated the agreement regarding the boundary made in 2007, and the Bancrofts and Rebatas relied on their agreement in dividing and allocating maintenance and costs associated with the Disputed Area. (FACC ¶¶ 11-17.)

Cross-complainants alleged that the Kennys purchased the Kenny Property in May 2021 and began challenging the Bancrofts' "use and occupancy" of the Disputed Area in July 2022. (FACC ¶ 8.) The Bancrofts allege in January 2023, when the Kennys knew the Bancrofts were away, the Kennys "trespassed" on the Disputed Area and removed cemented-in moss rocks and irrigation drip lines in the Disputed Area, destroying and altering evidence the Kennys knew was relevant to future litigation. (FACC ¶¶ 19-21.) The Bancrofts allege that the Kennys have also put warning tape, markers and barriers in the Disputed Area creating safety hazards. (FACC ¶ 22.)

The FACC alleges two causes of action for quiet title, one based on an agreed upon boundary and one based on prescriptive easement (1st and 2nd C/As, respectively), trespass (3rd C/A), waste (4th C/A), injunctive relief (5th C/A), abatement of a private nuisance (6th C/A), estoppel based on the agreed boundary (7th C/A), and declaratory relief (8th C/A). Cross-defendants move for judgment on the pleadings as to the first four causes of action for failure to allege facts sufficient to state a cause of action.

Legal Standards Governing Motion for Judgment on the Pleadings

Code of Civil Procedure section 438 permits a defendant to move for judgment on the pleadings on the ground that the complaint does not state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc. §§ 438(b)(1) and 438(c)(1)(B)(ii); *Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 ["Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense. [Citation omitted.]"].) (See also *Connerly v. Schwarzenegger* (2007) 146 Cal.App.4th 739, 746 ["A motion for judgment on the pleadings is the equivalent of a demurrer made after the pleadings are in." [Citation omitted.]"].)

The legal standards for determination of a motion for judgment on the pleadings are similar to the standards for determination of a demurrer. (*Eckler v. Neutrogena Corp.* (2015) 238 Cal.App.4th 433, 439.) The basis for judgment on the pleadings "shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc. § 438(d).) As in the case of a demurrer, the Court accepts all factual allegations of the complaint and "gives them a liberal construction." (*Gerawan Farming, Inc. v. Lyon* (2000) 24 Cal.4th 468, 515-16.)

Consistent with the rules for determination of a demurrer, a motion for judgment on the pleadings must fully dispose of the challenged cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.*, *supra*, 12 Cal.5th at 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.) Further, "If the motion for judgment on the pleadings is granted, leave to amend must be granted unless the defect cannot be cured by amendment." (*Hudson v. County of Los Angeles* (2014) 232 Cal.App.4th 392, 408.)

Procedural Note on Opposition

California Rules of Court, Rule 2.108 governs line spacing of pleadings. Only certain information, such as real property descriptions, footnotes, and quotations may be single-spaced. (Cal. R. Ct., Rule 2.108 subparts (2), (3).) The single-spaced headings in the opposition do not comply with this rule. The Court expects compliance with this rule in future filings.

Requests for Judicial Notice

In support of their motion, Cross-defendants ask the Court to take judicial notice of the grant deeds for the Kenny Property and the Bancroft Property (Kenny RJN Exhs. A and B), the FACC (Kenny RJN Exh. C), and a recorded subdivision map for Subdivision 4742 (Kenny RJN Exh. D). Cross-Complainants request the Court take judicial notice of the original and second amended complaints filed by the Kennys, the FACC filed by the Bancrofts, and the Kennys' answer to the FACC. Neither request is opposed.

Judicial notice of the grant deeds and subdivision map (Kenny RJN Exhs. A, B, and D) is appropriate as recorded documents, and the Court **grants** the request. (Evid. Code § 452(c); *Linda Vista Village San Diego Homeowners Assn., Inc. v. Tecolote Investors, LLC* (2015) 234 Cal.App.4th 166, 184 [judicial notice of recorded documents].) The Court also **grants** the unopposed requests for judicial notice of the FACC and other pleadings filed in this action, but judicial notice does not extend to judicial notice of the truth or interpretation of the content of the pleadings to the extent reasonably disputable. (*StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9.)

Analysis

A. Quiet Title Causes of Action (1st and 2nd C/As) – Legal Description

Under Code of Civil Procedure section 761.020 "shall be verified and shall include all of the following: (1) a description of the property that is the subject of the action. . . . In the case of real property, the description shall include both its legal description and its street address or common designation, if any." (Code Civ. Proc. § 761.020 (a).) Inclusion of a legal description of the property at issue in a quiet title cause of action is mandated by the statute, not optional. Cross-complainants cite no authority to the contrary; they cite no authority that the cases addressing notice pleading in general override a specific statutory directive for pleading a quiet title complaint.

The first and second causes of action, both alleging claims for quiet title, fail to allege any legal descriptions and therefore fail to include essential allegations required to state a quiet title cause of action under Code of Civil Procedure section 761.020. The Bancrofts characterize this requirement as "formalistic," and argue that the Kennys have sufficient notice of the Disputed Area based on allegations regarding the location of sprinklers or drip lines and landscape materials. The basis of the motion is not that the FACC is uncertain, but that the allegations fail to comply with the statutory mandate for a quiet title complaint. The motion for judgment on the pleadings as to the first and second causes of action is **granted** on this ground, **with leave to amend**.

B. Agreed Boundary (1st C/A)

"The agreed boundary doctrine constitutes a firmly established exception to the general rule that accords determinative legal effect to the description of land contained in a deed." (*Bryant v. Blevins* (1994) 9 Cal.4th 47, 54.) The California Supreme Court in *Bryant* reaffirmed "the vitality of the requirements necessary to establish the applicability of the agreed-boundary doctrine, set forth in *Ernie v. Trinity Lutheran Church* (1959) 51 Cal.2d 702." (*Id.*) The requirements of the agreed-boundary doctrine stated in *Ernie* are "that there be an uncertainty as to the true boundary line, an agreement between the coterminous owners fixing the line, and acceptance and acquiescence in the line so fixed for a period equal to the statute of limitations or under such circumstances that substantial loss would be caused by a change of its position." (*Ernie v. Trinity Lutheran Church* (1959) 51 Cal.2d 702, 707.)

The Court in *Bryant* also declined "to limit application of the agreed-boundary doctrine to instances in which existing legal records are inadequate to settle a boundary dispute," explaining that "such an inflexible rule would risk destabilizing long-standing agreements--made in good faith by coterminous property owners in order to resolve uncertainty as to the location of their common boundaries--that might, for any one of several reasons, be at variance with legal property descriptions or survey results." (*Bryant, supra*, 9 Cal.4th at 54 [emphasis added].) (*See also Ernie, supra*, 51 Cal.2d at 707-708 ["It is not required that the true location be absolutely unascertainable [citation omitted]; that an accurate survey from the calls in the deed is possible [citation omitted], or that the uncertainty should appear from the deeds [citation omitted]. The line may be founded on a mistake. [Citation omitted.]"].) Notably, the cases cited by the Kennys were generally decided on an evidentiary record, not on a demurrer or motion for judgment on the pleadings.

The Court in *Bryant* found the Court of Appeal "improperly rejected the analysis set forth in other,

well-reasoned Court of Appeal decisions that have held the doctrine is not properly applicable in cases . . . in which there is no evidence that prior owners of adjoining parcels of real property entered into an agreement to resolve a boundary dispute and where available legal records provided a reasonable basis for fixing the boundary. In the present case, because defendants, while relying upon the agreed-boundary doctrine, failed to demonstrate that an uncertainty as to the true boundary line led the prior coterminous owners to agree to fix the boundary separating the parties' respective parcels of real property at the location of the barbed wire fence, we conclude that the Court of Appeal erred in upholding the application of the agreed-boundary doctrine." (*Bryant, supra*, 9 Cal.4th at 53-54 [emphasis added].) The defendant argued that the plaintiffs did not establish that the adjoining property owners had made an agreement to accept the fence as the location of the boundary line because the property owners were uncertain of the location of the boundary. (*Id.* at 55.)

The Court held that long-term acquiescence in the location of a fence bordering the adjoining properties alone was not enough to meet the requirements of the doctrine, specifically "that there be an uncertainty as to the location of the true boundary when the fence was erected, and an agreement between the neighboring property owners to employ the location of the fence as the means of establishing the boundary. [Citation omitted.]" (*Bryant, supra*, 9 Cal.4th at 58 [also stating "when existing legal records provide a basis for fixing the boundary, there is no justification for inferring, without additional evidence, that the prior owners were uncertain as to the location of the true boundary or that they agreed to fix their common boundary at the location of a fence. [Citation omitted.]"].)

One of the "well-reasoned" Court of Appeal decisions approved and relied on in *Bryant* is *Armitrage v. Decker* (1990) 218 Cal.App.3d 887. That case held that the agreed-boundary doctrine could not be used to "supersede recorded legal descriptions of the property where, as here, they are fully consistent" because application of the doctrine in that circumstance "would not only destroy the significance of recorded instruments but would foster litigation rather than preventing it." (*Armitrage, supra*, at 903 [emphasis added, quoted at *Bryant, supra*, 9 Cal.4th at 57].) (*See also Martin v. Van Bergen* (2012) 209 Cal.App.4th 84, 90 [no showing of uncertainty if boundary can be determined "from an accurate survey," but also finding proof of agreed boundary insufficient on other grounds].)

The type of "additional evidence" to show uncertainty regarding the boundary line is illustrated in *Ernie*. In that case, there was evidence of uncertainty because the church had commissioned a survey and then later constructed a cement pathway and church building on the disputed strip of land as to which there had been no objection for 26 years, notably structures that were not merely fences "which might in and of themselves be of uncertain, temporary or equivocal nature." (*Id.* at 708.) A subsequent survey showed a different boundary line and that the buildings and pathway encroached on the disputed strip, prompting the litigation, such that there were multiple surveys with varying property lines, and the dispute over the property line was not raised until years after the structures had been erected and the new adjoining property owner was made aware of the property line shown in the later survey. (*Id.* at 708.)

There are no allegations in the FACC that there was uncertainty regarding the true property line based on surveys or the recorded documents, including the subdivision map and deeds. The Court in *Armitrage* rejected the existence of the "uncertainty" element where available recorded legal

descriptions were all consistent regarding the boundary location. (*Armitrage, supra*, 218 Cal.App.3d at 903.) The Court in *Bryant* reversed the Court of Appeal decision relying on the adjoining property owners' long acquiescence in the fence location as the boundary because it "incorrectly dismissed the sound logic set forth in *Armitrage*." (*Bryant, supra*, 9 Cal.4th at 57.)

The Bancrofts allege that the two property owners, meeting outside their respective homes in the spring of 2007, were uncertain about the location of the boundary of their properties and made an agreement as to where the line would run in connection with each owners' landscaping. (FACC ¶¶ 9, 10.) They allege the property owners' alleged acquiescence in the location of the boundary based on the location and direction of sprinklers and reliance on the location for purposes of installing and maintaining landscaping after the agreement on the location of the boundary. (See, e.g., FACC ¶¶ 12-18.) Those facts, however, do not allege the "additional evidence" necessary to invoke the agreed-boundary doctrine under the foregoing authorities; they simply allege that the homeowners did not know where the property line was located and agreed to allocate the landscaping and maintenance between their respective properties. The Bancrofts have not alleged the additional facts that show there was uncertainty regarding the boundary line under the case law, such as based on possible conflicts in the legal descriptions in prior recorded documents, inconsistent boundary lines in prior surveys, or some other facts that support that there was uncertainty or ambiguity in the boundary location not resolvable by reviewing the recorded documents, deeds or surveys.

For these additional reasons, the motion for judgment on the pleadings as to the first cause of action is **granted, with leave to amend**.

C. Prescriptive Easement (2nd C/A)

"To establish the elements of a prescriptive easement, the claimant must prove use of the property, for the statutory period of five years, which use has been (1) open and notorious; (2) continuous and uninterrupted; (3) hostile to the true owner; and (4) under claim of right. [Citations omitted.]" (*Mehdizadeh v. Mincer* (1996) 46 Cal.App.4th 1296, 1305.) (See also *McBride v. Smith* (2018) 18 Cal.App.5th 1160, 1180.) " 'The existence of a grant [easement] does not preclude the acquisition of greater rights by prescription.' [Citations omitted.] 'Use with the owner's permission, however, is not adverse to the owner. [Citations.] To be adverse to the owner a claimant's use must give rise to a cause of action by the owner against the claimant. [Citations.]" (*McBride, supra*, 18 Cal.App.5th at 1181.)

The Kennys contend this cause of action fails because the Bancrofts cannot plead inconsistent facts, and the facts alleged to support the prescriptive easement claim are inherently inconsistent with the agreed boundary claim. The Kennys contends the Bancrofts' allegations that the property owners agreed to a boundary line conflict with the allegations that the Bancrofts' use and possession of the Disputed Area was "hostile" or "adverse" to the Kennys and their predecessor owners.

The cases support that "[w]hen a pleader is in doubt about what actually occurred or what can be established by the evidence, the modern practice allows that party to plead in the alternative and make inconsistent allegations. [Citations omitted.]" (*Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1402 [emphasis added].) (See also *Batta v. Hunt* (2024) 106 Cal.App.5th 295, 304 [in case in which plaintiffs pled easement by express grant, implication, or prescription, stating "To accommodate these uncertainties, plaintiffs can generally plead 'alternative factual allegations relying

on alternative legal theories.' [Citation omitted.]").)

In *Newport Harbor Ventures, LLC v. Morris Cerullo World Evangelism* (2016) 6 Cal.App.5th 1207, the plaintiffs alleged causes of action for breach of contract, which was based on an express contract, and quantum meruit as well as promissory estoppel. Though "[q]uantum meruit recovery that is contrary to an express contractual term is not allowed [Citation omitted]," the Court held the plaintiffs could plead the inconsistent counts. (*Id.* at 1224-1225.) The Court similarly acknowledged that promissory estoppel "does not apply if the promisee gave actual consideration and, therefore, a cause of action for promissory estoppel is inconsistent with a cause of action for breach of contract based on the same facts. [Citation omitted.]" (*Id.*) Nevertheless, based on the rule stated in *Mendoza, supra*, the Court held at the pleading stage where the pleader has doubts about what can be established by the evidence, the party may plead inconsistent allegations such that the plaintiffs could allege both breach of contract and promissory estoppel. (*Id.*)

Batta held that a court ultimately finding both an express and implied easement by agreement, on one hand, and a prescriptive easement, on the other, is inconsistent and required reversal. But the case also supports that the plaintiff can plead the inconsistent theories, and then at trial, the plaintiff either must make an election, or the trial court must make findings at the close of the evidence as to which of the inconsistent theories the plaintiff has proven. (*Batta, supra*, 106 Cal.App.5th at 304.)

Here, in the prescriptive easement cause of action, the Bancrofts allege this cause of action "In addition to, and as an alternative to the bases for quiet title to the Disputed Area set forth above pursuant to the agreed-upon boundary doctrine." (FACC ¶ 31 [emphasis added].) It is clear the Bancrofts are attempting to plead alternative grounds for relief. Alleging that the prior owner of the Kenny Property allowed the Bancrofts to maintain and landscape the Disputed Area based on an agreement that the Disputed Area was part of the Bancroft Property, under the agreed boundary theory, is arguably different from the prior owner granting permission for the Bancrofts to maintain and landscape the Disputed Area even though the Disputed Area was part of the Kenny Property. Based on *Batta*, *Mendoza* and *Newport Harbor Ventures*, for purposes of a motion for judgment on the pleadings and the liberal construction accorded, the FACC sufficiently alleges alternative factual theories by pleading the second cause of action as an alternative to the agreed boundary claim under the cited cases based on the pleader's uncertainty either as to what occurred or what the Bancrofts may be able to prove at trial. (*Mendoza, supra*, 140 Cal.App.4th at 1402; *Newport Harbor Ventures, supra*, 6 Cal.App.5th at 1224-1225.)

The Court therefore **denies** the motion to the extent it is based on the additional ground that the second cause of action improperly pleads inconsistent facts.

D. Trespass (3rd C/A)

The Kennys' memorandum in support of their motion asserts what the elements of trespass are and that the trespass claim fails because it is dependent on the deficient quiet title causes of action. (MPA ISO Mot. p. 10, ll. 4-17.) (*Lafferty v. Wells Fargo Bank* (2013) 213 Cal. App. 4th 545, 571-572 ["When a point is asserted without argument and authority for the proposition, 'it is deemed to be without foundation and requires no discussion by the reviewing court.'"]; *Mattco Forge, Inc. v. Arthur Young & Co.* (1997) 52 Cal. App. 4th 820, 850 ["In a page and a half, and with citation to but one case for the

general proposition the conduct was despicable, [Cross-Appellant appeals] from the granting of the directed verdict motion. This cursory treatment requires no discussion by us.".)

The memorandum cites no legal authority for these assertions, including legal authority as to the elements of trespass stated in the memorandum. Nevertheless, the Bancrofts' opposition effectively concedes that this cause of action is dependent on the sufficiency of the quiet title causes of action, which the Court has found do not allege facts sufficient to state those causes of action. (Opp, p. 15, ll. 5-12 and Errata p. 15, ll. 5-12.) Both quiet title causes of action are legally deficient for failure to include the legal descriptions required. On this basis, the motion is **granted, with leave to amend**.

E. Waste (4th C/A)

Though the Kennys' motion states they are seeking judgment on the pleadings as to the fourth cause of action for waste, their memorandum in support of the motion makes no argument and cites no legal authority in support of their motion for judgment on the pleadings as to the waste cause of action. (*Lafferty, supra*, 213 Cal. App. 4th at 571-572; *Mattco Forge, supra*, 52 Cal. App. 4th at 850.) The opposition also does not address the waste cause of action, likely because the initial memorandum makes no argument regarding the waste cause of action.

The Kennys' reply for the first time argues the waste cause of action is dependent on the quiet title causes of action and fails because those causes of action are not pled with sufficient facts, citing two CACI instructions. The Court does not consider this argument raised for the first time in the reply, as the Bancrofts have not had the opportunity to oppose the arguments. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538 [points raised for the first time in a reply brief normally not considered].) In addition, CACI Instructions are not legal authority, such that the argument in the reply is not supported. (*Evans v. Hood Corp.* (2016) 5 Cal.App.5th 1022, 1049 ["[J]ury instructions, whether published or not, are not themselves the law, and are not authority to establish legal propositions or precedent. They should not be cited as authority for legal principles . . . ,"] quoting *People v. Morales* (2001) 25 Cal.4th 34, 48, fn. 7].)

The motion for judgment on the pleadings as to the fourth cause of action for waste is therefore **denied** on these procedural grounds.

3. 9:00 AM CASE NUMBER: C23-00841
CASE NAME: ANGELITO ALVIZ VS. VIRGILIO LEGARTE
HEARING ON DEMURRER TO: CROSS COMPLAINT OF LEGARTE
FILED BY: KOOKEN, CAROLYN
TENTATIVE RULING:

Before the Court is Cross-Defendant Carolyn Kookan ("Cross-Defendant" or "Kookan")'s Demurrer. The Demurrer relates to Cross-Complainant Virgilio Legarte ("Cross-Complainant" or "Legarte")'s Cross-Complaint for (1) aiding and abetting breach of fiduciary duty and (2) tort of another.

Cross-Defendant demurs to both Cross-Complainant's causes of action on the grounds that they fail to allege facts sufficient to state causes of action against Kookan.